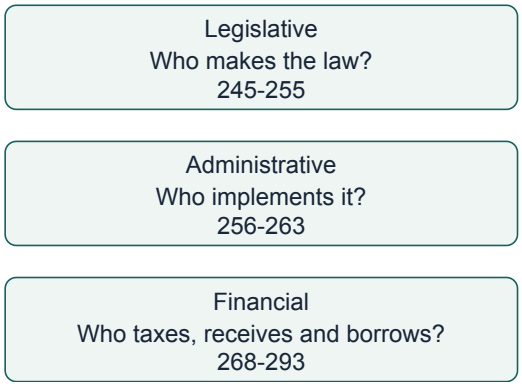
Centre-State Relations

1. Three dimensions of federal relations

- **Legislative:** who makes the law? **Administrative:** who implements it? **Financial:** who taxes, receives revenue and borrows?
- Division of legislative, executive and financial authority coexists with an **integrated judiciary** enforcing Union and State laws. Both governments have constitutionally protected spheres; coordination makes them work together.
- Core provisions: legislative relations **245-255**, administrative relations **256-263** (Part XI); financial relations mainly **268-293** (Part XII). Other provisions also apply.



Three connected dimensions; an integrated judiciary supports all three.

2. Legislative relations: territory and subjects

- **245:** Parliament legislates for all/part of India, including States, UTs and acquired territory. State law operates within its State; an outside connection requires **sufficient territorial nexus**. A parliamentary law is not invalid merely because it has extra-territorial operation.
- **Territorial qualifications:** Presidential regulations for Andaman & Nicobar, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu; Puducherry when its Assembly is dissolved/suspended as specified under **240**. Ladakh regulations are provided for by **section 58(2), J&K Reorganisation Act, 2019**, using Article 240. Such regulations can amend/repeal parliamentary laws applicable there.
- **Fifth Schedule:** Governor may exclude/modify parliamentary or State Acts in Scheduled Areas. **Sixth Schedule:** special application/modification rules operate in autonomous tribal areas; chapter highlights Governor's role in Assam and President's role in Meghalaya, Tripura and Mizoram. These are **specific constitutional exceptions**, not blanket exclusion of Parliament.
- **246 + Seventh Schedule:** Union List = national importance/uniformity; State List = local/regional interests; Concurrent List = shared interests permitting uniformity with diversity.
- **Union examples:** defence, foreign affairs, banking, currency, atomic energy, insurance, communications, inter-State trade, census, audit. **State examples:** public order, police, public health, agriculture, prisons, local government, fisheries, markets, theatres, gambling. **Concurrent examples:** criminal/civil procedure, marriage/divorce, population control, electricity, labour welfare, economic/social planning, drugs, newspapers and books.

- **Entry counts:** original **97 Union / 66 State / 47 Concurrent**; chapter's current operative count **98 / 59 / 52**. Numbering retains gaps and lettered additions: last serial number is not the active-entry total. Union additions 2A, 92A, 92B; omissions 33, 92, 92C. State omissions 11, 19, 20, 29, 36, 52, 55. Concurrent additions 11A, 17A, 17B, 20A, 33A.
- **42nd Amendment, 1976: five transfers to Concurrent List:** education; forests; weights and measures; protection of wild animals/birds; administration of justice and organisation of courts except SC/HCs. Remember **E-F-W-W-J**.
- **246(4):** Parliament can legislate on State List matters for territory not included in a State, notably UTs, subject to applicable special arrangements.
- **248:** Parliament holds residuary legislative/tax powers, **subject to 246A**. GST has a special constitutional distribution: both levels legislate; **inter-State GST exclusively Parliament**.
- Comparative recall: USA/Australia leave residual authority broadly with States; Canada with Centre. **Government of India Act, 1935:** three lists, but residual allocation by Governor-General; present India combines three lists with parliamentary residuary authority.

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3. Legislative priority and repugnancy

- Under **246**, Union competence prevails over competing State/Concurrent competence; Concurrent over State, subject to constitutional interpretation and reconciliation of entries.
- **254:** repugnancy between valid Union and State laws on a **Concurrent** subject ordinarily makes the State law void to the extent of conflict.
- **254(2) exception:** State law reserved for and assented to by President may prevail **in that State** over the specified earlier parliamentary/existing law; **Parliament may later override it**. Presidential assent does not cure every constitutional defect.
- **251:** parliamentary laws under 249/250 prevail over inconsistent State laws while they operate; the State law is inoperative to the extent of repugnancy for that period.
- Do not confuse **overlapping legislative entries**, **Concurrent-list repugnancy**, and **GST's special 246A framework**.

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4. Five routes for Parliament to legislate in the State field

- **249 - National interest:** Rajya Sabha resolution by **two-thirds present and voting**; valid **up to one year**, renewable up to one year at a time. Resulting law ceases to operate **six months after resolution expires**. State legislative competence continues; Union law prevails on conflict. Provision also expressly covers GST.
- **250 - National Emergency:** Parliament can legislate on State List matters/GST while **352** operates; law ceases **six months after Emergency ends**. States can still legislate; Union law prevails on conflict.
- **252 - State request:** resolutions by legislatures of **two or more States** (both Houses where bicameral); parliamentary law applies to requesting States, and others may later adopt it. **Only Parliament can amend/repeal it** under the Article's procedure. A single State alone cannot initiate this route; consenting States surrender legislative control over the covered matter.
- **253 - International obligations:** Parliament may implement treaties, agreements, conventions and international decisions, including on State subjects; **State consent is not a constitutional prerequisite**.

- **356/357 - President's Rule:** State legislative authority becomes exercisable by/under Parliament. Laws **continue after President's Rule** until competent authority changes them; State legislature can subsequently alter/repeal them.
- **252 examples:** Prize Competitions Act 1955; Wild Life (Protection) Act 1972; Water Act 1974; Urban Land Ceiling Act 1976; Transplantation of Human Organs Act 1994. Wildlife later moved to Concurrent List; these examples describe their enactment context.
- **253 examples:** Geneva Conventions Act 1960; environment/TRIPS legislation; historical Anti-Hijacking Act 1982 (replaced by 2016 Act). **UN Privileges and Immunities Act 1947 predates the Constitution**: international-obligation example, not literally enacted under Article 253.



Five different routes: compare trigger, consent and duration.

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5. Union influence over State legislation

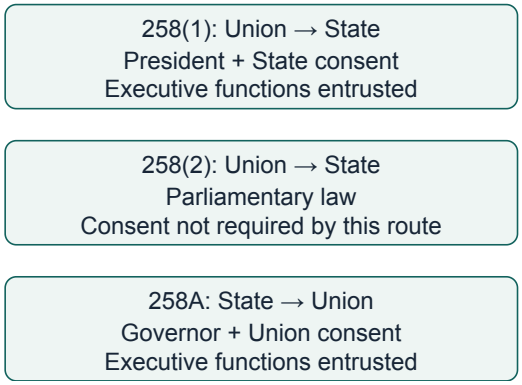
- **200/201:** Governor may reserve a State Bill for President; President can assent/withhold assent and direct reconsideration of a non-Money Bill. The State legislature has **six months** to reconsider after receiving the President's message. Do not treat veto labels as a licence for arbitrary inaction.
- **304(b):** Bills imposing specified reasonable restrictions on inter-State/within-State trade in public interest require **prior presidential sanction** for introduction/moving amendment. Not every State tax Bill falls under this clause.
- **213:** certain ordinances need presidential instructions: where equivalent Bill needs prior presidential sanction, would have been reserved, or would be invalid without presidential assent.
- **360:** financial-emergency directions may require reservation of Money Bills and other Bills to which **207** applies, after State legislature passes them.
- **Sarkaria's rationale:** Union supremacy resolves conflicts and preserves workable, coherent legislation; it should coexist with consultation and protected State spheres.
- **Assent update (2025):** the Supreme Court's Presidential Reference opinion rejects judicially fixed assent deadlines/deemed assent; prolonged, unexplained Governor inaction can attract limited judicial direction to decide. Punchhi's proposed **six-month Governor/President deadline is a recommendation**, not a general enacted constitutional rule. Supreme Court opinion.

6. Administrative relations: execution and directions

- **73/162:** executive authority generally follows legislative competence. Union executes Union subjects and treaty-based rights/authority; States execute State subjects.
- **Concurrent subjects:** execution normally rests with States unless Constitution/parliamentary law expressly confers Union executive power. A Central law does **not automatically** mean exclusive Central implementation; Essential Commodities Act illustrates statutory Union powers.
- **256:** State executive must ensure compliance with applicable parliamentary/existing laws; Union may give necessary directions.
- **257:** State executive must not impede/prejudice Union executive power. Union may direct construction/maintenance of communications of national/military importance and railway protection; extra costs are dealt with constitutionally.
- Other directions: **350A** mother-tongue facilities at primary stage for linguistic-minority children; **339(2)** specified Scheduled Tribe welfare schemes.
- **365:** failure to comply with constitutional Union directions may support a finding of constitutional breakdown; **356 is not automatic**, and constitutional safeguards/judicial review apply.

7. Executive delegation: consent matters

- **258(1): Union → State:** President entrusts Union executive functions to State government/officers **with State government's consent**, conditionally/unconditionally.
- **258(2): parliamentary law → State:** Parliament may confer powers/impose duties on State government/officers even on matters beyond State legislative competence; **State consent not required** for this statutory route. Compensation for additional administrative costs is addressed by 258(3).
- **258A: State → Union:** Governor entrusts State executive functions to Union government/officers **with Union government's consent**, conditionally/unconditionally. Inserted by **7th Amendment, 1956**.
- States have no matching general unilateral statutory route to impose executive duties on Union. **Executive entrustment ≠ transfer of constitutional legislative competence.** Article 252 is a distinct legislative mechanism.



Executive delegation does not itself transfer legislative competence.

8. Cooperation, services and courts

- **262:** Parliament provides adjudication of inter-State river/water disputes and may exclude SC/other court jurisdiction as specified.
- **263:** President establishes Inter-State Council when public interest warrants; Council established **1990**. Discuss common interests, investigate/discuss disputes, recommend coordination; distinguish this from a court's binding adjudication.
- **261:** full faith and credit to public acts, records and judicial proceedings; final civil judgments/orders executable throughout India according to law.
- **307:** Parliament may appoint authority for implementing **301-304**; chapter notes no such authority. Punchhi proposed a Trade and Commerce Commission - **proposal, not an existing constitutional commission**.
- **All-India Services: IAS, IPS, Indian Forest Service (IFoS)**; Centre recruits/trains, Union and States share control, officers serve at both levels. IAS/IPS succeed ICS/Indian Police and are constitutionally recognised; IFoS established **1966**. Avoid confusion with Indian Foreign Service, a Central service.
- **312:** new AIS requires Rajya Sabha's **two-thirds present and voting** national-interest resolution, followed by parliamentary law. Common standards, strategic posts, coordination and mobility balance concern about State autonomy/patronage; AIS are constitutionally authorised, not unconstitutional merely because centralising.
- **State PSC:** Governor appoints chair/members; **President removes under 317**, with prescribed SC inquiry where applicable. **Joint State PSC:** Parliament creates on concerned State legislatures' request; President appoints. **UPSC:** may serve State needs at Governor's request with President's approval; assists joint recruitment schemes when **two or more States** request.
- **Integrated courts:** SC → HCs → subordinate courts; enforce both levels' laws. President appoints HC judges under constitutional process/collegium practice; transfers under 222; removal requires parliamentary special-majority address. Common HCs may be established by Parliament: Punjab/Haryana, Bombay HC for Maharashtra/Goa.
- **355:** Union duty to protect every State against external aggression/internal disturbance and ensure constitutional government. Governor is appointed by President, holds office during presidential pleasure subject to constitutional limits; constitutional head also provides Union-State link.
- **State Election Commissioner - 243K:** Governor appoints; removal only in like manner/on like grounds as an HC judge. **Not a simple discretionary presidential removal**; service conditions cannot be varied to disadvantage after appointment.

9. Administrative emergencies and consultation forums

- **National Emergency (352/353):** Union can give directions regarding State executive exercise on any matter; State governments are not automatically suspended.
- **President's Rule (356):** President may assume State governmental functions/Governor or other executive powers as provided; **HC powers cannot be assumed**.
- **Financial Emergency (360):** financial-propriety directions; reductions in salaries/allowances of specified classes serving State; Bill-reservation directions.
- **Non-constitutional ≠ non-statutory:** executive/advisory examples include **NITI Aayog**, National Integration Council, Central health/family-welfare and local-government councils, Transport Development Council; **Zonal Councils, North-Eastern Council and UGC** have statutory foundations.

- Chapter's Central Council of Indian Medicine/Homoeopathy examples are historical: replaced by **NCISM (11 June 2021)** and **NCH (5 July 2021)**. NCISM · NCH.
- Consultation conferences: Governors-President; Chief Ministers-PM; Chief Secretaries-Cabinet Secretary; police chiefs; Chief Justices-CJI; Vice-Chancellors; State Home Ministers-Union Home Minister; Law Ministers-Union Law Minister. Frequency need not be annual.

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10. Fiscal powers: levy, collect and appropriate

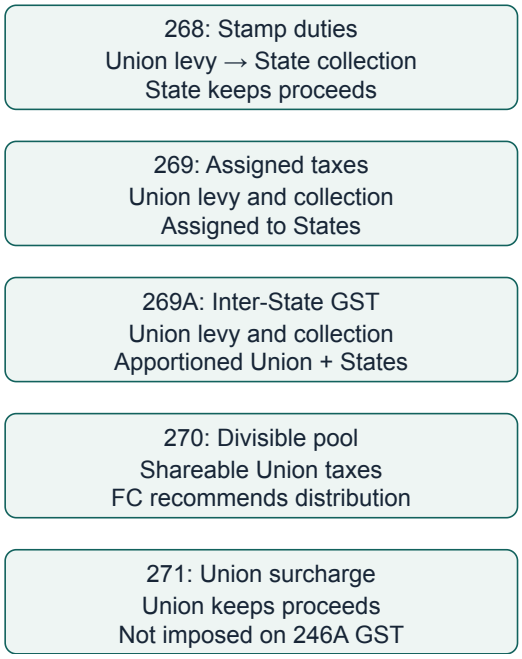
- **Tax authority ≠ collection ≠ receipt of proceeds.** Example: Union income tax collected centrally, eligible net proceeds shared with States.
- Union/State Lists contain distinct tax entries; **Concurrent List contains no tax entries**. GST concurrency arises separately under **246A**, not from a Concurrent tax entry. Residuary taxing power rests with Parliament.
- Chapter groups **13 Union and 18 State tax/fee entries**; entries include fees, so these are not totals of taxes currently levied. Historical gift/wealth/expenditure taxes illustrate residuary taxation, not a list of current levies.
- **276:** professions/trades/callings/employment tax capped at **₹2,500 per person per year**; **60th Amendment, 1988** raised the original ₹250 cap.
- **286:** State cannot tax supplies outside State or in import/export; Parliament determines principles. **287:** electricity consumed by/sold to Union, or specified railway purposes, enjoys constitutional protection subject to parliamentary law.
- **288:** State tax on water/electricity connected with parliamentary inter-State river/valley authorities requires the specified presidential-assent safeguard.
- **80th Amendment, 2000:** expanded sharing of Union taxes; linked to 10th FC alternative devolution scheme effective **1 April 1996**, historically **29%**; omitted 272. These are historical, not current devolution figures.
- **101st Amendment, 2016:** GST constitutional framework; inserted 246A/269A/279A, omitted **268A and Union Entry 92C** (service-tax provisions inserted by 88th Amendment). GST began **1 July 2017**.
- GST absorbed Central excise/additional excise where applicable, service tax, additional customs duties (CVD/SAD), related cesses/surcharges; State VAT/sales taxes where applicable, Central sales tax, octroi/entry/purchase/luxury taxes, specified entertainment/lottery/betting/gambling taxes and related levies. **It did not abolish every indirect tax**: alcohol for human consumption excluded; specified petroleum products await GST commencement as constitutionally provided; basic customs duty remains.

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11. Six revenue channels

- **268 - Union levies; States collect and keep:** specified stamp duties, e.g. bills of exchange, cheques, promissory notes, insurance policies, share transfers. In UTs, Union collects; State proceeds are assigned to that State, outside CFI.
- **269 - Union levies/collects; States receive:** specified inter-State sale/purchase and consignment taxes, **except 269A**; allocation by parliamentary principles. Relevant non-GST taxes must not be confused with IGST.
- **269A - Inter-State GST:** Union levies/collects; apportioned Union-State by parliamentary law on GST Council recommendations. **Imports deemed inter-State supplies**; Parliament determines place-of-supply/inter-State principles.

- **270 - Divisible pool:** shareable Union taxes/duties and specified Union GST proceeds, excluding **268/269/269A categories, 271 surcharges and specific-purpose cesses**; President prescribes distribution on FC recommendations.
- **271 - Union surcharge:** Union retains; **cannot surcharge GST under 246A**. Cesses and surcharges reduce the shareable base; 41% means share of **divisible pool**, not all gross Union tax receipts.
- **State-own revenue:** State List levies retained by States plus State GST under special framework. Examples: land revenue, agricultural-income tax; succession/estate duties on agricultural land; lands/buildings; mineral rights subject to parliamentary limitations; specified excise; electricity; petroleum/alcohol sales; road/inland-waterway goods/passengers; vehicles; animals/boats; tolls; profession tax; capitation; local-body entertainment taxes; specified stamp duties; fees excluding court fees. Constitutional competence does not imply every listed levy is currently collected.
- **Non-tax revenue examples:** Union-posts, railways, broadcasting, currency-related receipts, public enterprises, escheat/lapse; States-irrigation, forests, fisheries, State enterprises, escheat/lapse. Modern receipts include fees, dividends and interest; the chapter's examples are illustrative, not a revenue ranking.



Identify levy, collection and appropriation separately.

12. Grants, Finance Commission and GST Council

- **275 - statutory grants:** States needing assistance; amounts may differ; charged on CFI. Specific support for Scheduled Tribe welfare/Scheduled Area administration, including constitutional Assam provisions. FC recommends principles; not equal automatic grants to every State.
- **282 - discretionary public-purpose grants:** Union **and States** may grant even outside their legislative fields; supports programmes/cooperation. Textbook planning terminology is historical; constitutional power continues.
- **273 - historical jute grants:** Assam, Bihar, Odisha, West Bengal in lieu of export-duty share; limited transitional period ending by **1960**, not a continuing current grant scheme.
- **280 - Finance Commission:** President constitutes every **fifth year or earlier**; chair + four members. Constitutionally constituted advisory body with inquiry/civil-court powers under law, often described as quasi-judicial; recommendations are not court decrees.

- FC functions: **vertical sharing Union-State; horizontal State shares; grant principles; augment State Consolidated Funds for Panchayats/Municipalities based on State FC recommendations; other presidential references for sound finance**. Local-body functions followed 73rd/74th Amendments.
- **281:** recommendations plus explanatory memorandum on action taken laid before both parliamentary Houses. FC is the fiscal federalism **balancing wheel**, not the GST Council.
- **Devolution update: 14th FC 42% (2015-20); 15th FC 41% (2020-26); 16th FC 41% (2026-31), retained and accepted by Government.** These are period-specific divisible-pool shares. Government acceptance of 16th FC recommendation.
- **279A - GST Council:** President constituted; Union Finance Minister chairs; Union Minister of State for Revenue/Finance and each State's nominated Finance/Taxation/other Minister. State members choose a Vice-Chair. **Quorum half members; decision ≥three-fourths weighted votes present/voting; Union one-third weight, States together two-thirds**.
- Recommendations cover subsumed taxes/cesses/surcharges; taxable/exempt supplies; model laws, levy, IGST allocation/place of supply; turnover exemptions; rates/floor bands; special temporary disaster rates; special-category provisions and other GST matters. **Council recommendations do not themselves enact tax law**.

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13. State safeguards, borrowing and tax immunity

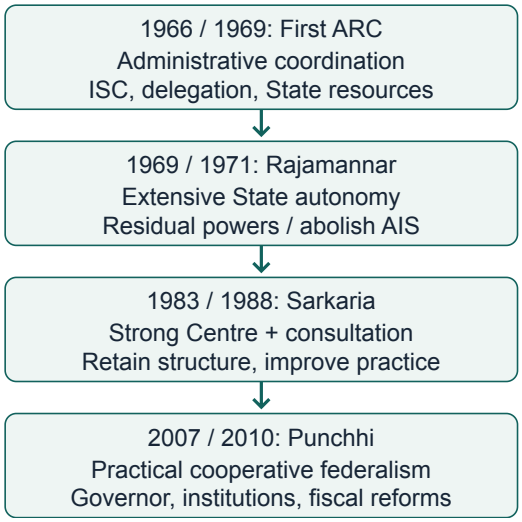
- **274:** prior presidential recommendation for specified Bills/amendments affecting State-interested taxes/duties, agricultural-income definition, distribution principles or Union surcharges.
- **279:** net proceeds = gross receipts **minus collection costs**; **CAG certifies, certificate final**.
- **292:** Union may borrow domestically/abroad against CFI and give guarantees within parliamentary limits. **293:** States borrow **within India**, against State Consolidated Fund, within State-law limits.
- Union may lend to/guarantee State loans. State needs **Union consent** while Union loan/Union-guaranteed loan remains outstanding; consent may have conditions. This is not a requirement for Union permission for every State borrowing in all circumstances.
- **285:** Union property exempt from State/local taxes, subject to constitutional exceptions and parliamentary law; separate Union-owned companies/corporations do not automatically inherit immunity.
- **289:** State property/income exempt from Union taxation; Parliament may tax State commercial activity, and declare specified activities incidental to ordinary government functions. Local authorities/State companies do not automatically receive State immunity.
- **Sea Customs reference, 1963:** 289 immunity does not generally exempt customs/excise duties on goods; distinguish direct property/income taxes from indirect duties.
- **354 + National Emergency:** President may modify operation of **268-279** revenue distribution, with order laid before both Houses; modifications extend no later than end of financial year in which Emergency ceases. **360:** financial propriety, salary reductions, reservation of specified financial Bills.

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14. Trends and friction points

- **Before 1967:** common party control often eased coordination. **1967:** Congress lost power in nine States; opposition governments pressed for autonomy/resources. Party competition, coalition/regional politics and fiscal dependence changed bargaining.

- **Political/constitutional friction:** Governor appointment/removal/partisanship; misuse of 356; Central-force deployment; reservation/delay of State Bills; Union intrusion on State subjects; inquiries against Chief Ministers; political use of electronic media.
- **Administrative friction:** AIS management; CBI/ED and other Central agencies' operation; execution of Centrally Sponsored Schemes.
- **Fiscal friction:** discretionary allocations, revenue sharing, scheme burdens, borrowing controls; historical Planning Commission approval of State projects. **NITI Aayog replaced Planning Commission in 2015**; do not transfer every old funding function to NITI.



Appointment/report years; proposals must be distinguished from existing law.

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15. Early reform initiatives: proposals versus existing law

- **First ARC (1966; report 1969):** six members; Morarji Desai, later K. Hanumanthaiya; Centre-State study team **M.C. Setalvad**; **22 recommendations**. Inter-State Council, experienced non-partisan Governors, maximum executive delegation, greater State resources, Central-force deployment with/without request. Textbook's "no action" describes early response; Council was later established.
- **Rajamannar Committee (1969; report 1971):** Tamil Nadu DMK government; chair **P.V. Rajamannar**, members A. Lakshmanaswami Mudaliar and P. Chandra Reddy. Diagnosed special Union powers, one-party dominance, fiscal dependence and central planning as centralising causes.
- Rajamannar proposals: immediate ISC; permanent FC; statutory body replacing Planning Commission; delete **356/357/365**; remove ministry's Governor-pleasure provision; shift selected Union/Concurrent subjects to States; State residual powers; abolish AIS. **Not adopted as a constitutional package**.
- **Anandpur Sahib Resolution, 1973:** Akali Dal; political/religious demands. Restrict Centre to defence, foreign affairs, communications, currency; residual powers to States; real federalism and equal State authority/representation. **Demand, not constitutional change**.
- **West Bengal memorandum, 1977:** replace "Union" with "federal"; Centre-defence, foreign affairs, currency, communications, economic coordination; other/residual subjects to States; repeal **356/357/360**; binding State consent to reorganisation; **75% total Central revenue** to States; stronger Rajya Sabha; abolish AIS. **Not accepted**; 75% demand is not today's tax-sharing rate.

16. Sarkaria Commission: strong Centre, cooperative practice

- **1983-88:** chair **R.S. Sarkaria**; **B. Sivaraman, S.R. Sen**; **247 recommendations**. Existing constitutional structure broadly sound; focus operational reform. Strong Centre necessary for unity; **strength ≠ over-centralisation**.
- **Institutions:** permanent Inter-Governmental Council under 263; reactivate Zonal Councils; rename/reconstitute NDC as National Economic and Development Council; strengthen/create AIS; activate linguistic-minorities commissioner.
- **Autonomy safeguards:** 356 last resort; consult States on Concurrent laws; communicate reasons when President withholds assent; constitutionally prescribe CM consultation on Governor appointment; protect Governor's five-year tenure except compelling reasons; no dismissal of ministry retaining Assembly majority; State-minister inquiry commissions only on parliamentary demand.
- **Competence:** residual taxes stay Union, other residual powers to Concurrent; retain Union State-reorganisation power and existing Rajya Sabha role; Central armed-force deployment possible without consent but State consultation desirable.
- **Finance/planning:** share corporation-tax proceeds; income-tax surcharge only specific purpose/limited time; maintain then-existing FC/Planning Commission division. Corporation tax now participates in divisible pool after 80th Amendment; planning proposals retain historical context.
- **Language/media:** implement three-language formula; operational decentralisation of radio/TV rather than autonomous institutions.
- Chapter reports **180/247 implemented**; treat as its reported tally, not an independently updated count. Key institutional outcome: **Inter-State Council, 1990**.

17. Punchhi Commission: practical cooperative federalism

- **2007-10:** chair **M.M. Punchhi**, former CJI; members Dhirendra Singh, V.K. Duggal, N.R. Madhava Menon, Amaresh Bagchi (after death, **Vijay Shanker joined 2008**). Report **seven volumes, 1,456 pages; over 310 recommendations**; drew on Sarkaria, NCRWC, Second ARC. Guiding idea: cooperation supports unity, integrity and development.
- **Legislation/treaties (recommendations 1-7):** broad Union-State agreement before Concurrent laws; more State flexibility on State/transferred Concurrent subjects; Union intervention only for demonstrated national uniformity; continuing ISC audit of overlap; six-month presidential assent decision; law structuring treaty-making/implementation; treaty-related State fiscal obligations in FC terms of reference.
- **Governor appointment/tenure (8-12):** eminent outsider, detached from local politics, not recently politically active; fixed five years with protection against arbitrary removal; impeachment mechanism analogous to President; 163 discretion narrow, reasoned/good-faith; six-month Bill decision. **Proposed impeachment/fixed deadlines are not current general constitutional provisions**.
- **Hung House convention (13):** widest support; majority pre-poll alliance treated as one. Suggested preference if no clear majority: **largest pre-poll group → largest single party with support → post-poll coalition with all partners in government → post-poll alliance with outside supporters**. Democratic majority must ultimately be tested on floor.
- **Governor's conduct (14-16):** floor test before CM dismissal; prosecution sanction despite Cabinet advice if refusal demonstrably biased against overwhelming evidence; end Governor's routine university chancellorship/other statutory roles. These are reform recommendations, not blanket rules adopted everywhere.

- **Emergency safeguards (17-19):** exhaust 355 alternatives; 356 only constitutional-machinery failure; incorporate **Bommai 1994** safeguards; legal/constitutional framework for **localised emergency** while State government/Assembly continue. **No new general local-emergency category was thereby created**.
- **Federal institutions (20-26):** strengthen 263 ISC; Zonal Councils meet at least twice yearly and use strengthened ISC secretariat; sectoral State coordination/rotating CM forum; new health, education, engineering, judicial AIS; strengthen Rajya Sabha's State voice and equal State seats through amendment; constitutionally clarify local-body devolution.
- **Fiscal accountability (27-33):** Union cost-sharing in laws implemented by States (RTE model); mineral royalty revision at least every three years/compensate delays; remove profession-tax cap; review 268 revenue potential; independent annual fiscal assessments tabled in legislatures; States involved in even-handed FC terms; reduce cesses/surcharges' share.
- **Planning/commerce (34-38):** examine plan/non-plan distinction; align FC/Plan cycles; permanent FC secretariat via Finance Ministry unit; Planning Commission to coordinate rather than micromanage; Trade & Commerce Commission under **307 + Union Entry 42** with advisory/executive decisions and SC appeal. **Planning Commission/Five-Year Plan context is historical**; plan/non-plan budget distinction ended in **2017-18** (Budget reform).
- Standing Committee of ISC considered recommendations in **2017/2018**; circulated to States for comments as reported in the chapter's MHA 2021-22 account. **Recommendation ≠ enactment ≠ implementation**.

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18. One-minute recall and Mains structure

- **249: RS two-thirds present/voting → ≤1 year → law lasts six months more. 250: Emergency → six months more. 252: two+ States → only Parliament amends. 253: international obligations. 356/357: laws survive restoration.**
- **258: President + State consent; 258(2): parliamentary statute without consent; 258A: Governor + Union consent.**
- **268 keep; 269 assign; 269A apportion IGST; 270 share pool; 271 Union surcharge. 275 statutory; 282 discretionary; 280 FC; 279A GST Council.**
- **Sarkaria:** retain structure, improve operation. **Punchhi:** cooperative practice, restrained Union intervention, stronger institutions and fiscal responsibility. **Rajamannar:** extensive State-autonomy demands.
- Mains answer: constitutional division → specific friction (Governor, fiscal base, agencies, overlapping laws) → safeguard/example → Sarkaria/Punchhi reform → consultation, predictable transfers, floor tests and accountable implementation.
- **Prelims traps:** law-making and execution differ; consent rules differ; all three crisis routes have different continuation rules; AIS ≠ Foreign Service; non-constitutional can be statutory; commissions' proposals are not automatic law.

Constitutional references

- Official Constitution: Parts XI/XII and related provisions.
- J&K Reorganisation Act: Ladakh regulations, section 58.